

COMMITTEE ON MILITARY AFFAIRS AND BORDER SECURITY  
SENATE AMENDMENTS TO S.B. 1803  
(Reference to printed bill)

Amendment instruction key:

~~[GREEN UNDERLINING IN BRACKETS]~~ indicates text added to statute or previously enacted session law.

~~[Green underlining in brackets]~~ indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

~~<<Green carets>>~~ indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 41, chapter 3, article 7, Arizona Revised  
3 Statutes, is amended by adding section 41-610.03, to read:

4 41-610.03. Veterans' benefits; claims; prohibition;  
5 compensation; disclosure; enforcement;  
6 applicability; definitions

7 A. A PERSON MAY NOT ACT AS AN AGENT OR AN ATTORNEY IN PREPARING,  
8 PRESENTING OR PROSECUTING ANY VETERANS' BENEFITS MATTER UNLESS THE PERSON  
9 IS RECOGNIZED FOR SUCH PURPOSES BY THE UNITED STATES DEPARTMENT OF  
10 VETERANS AFFAIRS.

11 B. A PERSON THAT IS NOT ACTING AS AN AGENT OR ATTORNEY MAY ONLY  
12 RECEIVE COMPENSATION FOR ADVISING, CONSULTING, GUIDING, COACHING OR  
13 TRAINING AN INDIVIDUAL FOR AN INITIAL CLAIM, SUPPLEMENTAL CLAIM OR HIGHER  
14 LEVEL REVIEW. A PERSON THAT IS NOT ACCREDITED AND RECEIVES COMPENSATION  
15 PURSUANT TO THIS SECTION SHALL FILE A COPY OF ANY STANDARD FEE AGREEMENT  
16 OR SERVICE CONTRACT WITH THE ATTORNEY GENERAL'S OFFICE. ANY FEE AGREEMENT  
17 OR SERVICE CONTRACT THAT DEVIATES FROM THE STANDARD FEE AGREEMENT OR  
18 SERVICE CONTRACT PREVIOUSLY FILED WITH THE ATTORNEY GENERAL'S OFFICE MUST  
19 ALSO BE FILED WITH THE ATTORNEY GENERAL'S OFFICE.

20 C. A PERSON THAT IS NOT ACTING AS AN AGENT OR ATTORNEY MAY NOT  
21 RECEIVE COMPENSATION FOR REFERRING AN INDIVIDUAL TO ANOTHER PERSON TO  
22 ADVISE, CONSULT, ASSIST, GUIDE, COACH OR TRAIN THE INDIVIDUAL REGARDING A  
23 VETERANS' BENEFITS MATTER.

24 D. BEFORE RECEIVING COMPENSATION PURSUANT TO SUBSECTION B OF THIS  
25 SECTION, THE PERSON SHALL PREPARE A WRITTEN AGREEMENT THAT IS SIGNED BY  
26 ALL THE PARTIES INVOLVED AND THAT CONTAINS THE FOLLOWING:

27 1. THE TERMS OF THE AGREEMENT, INCLUDING THE FEE STRUCTURE FOR THE  
28 SERVICES BEING PROVIDED.

1        2. A PROVISION ALLOWING FOR A THREE-DAY PERIOD IN WHICH THE  
2 INDIVIDUAL RECEIVING THE SERVICES MAY CANCEL THE AGREEMENT WITHOUT A  
3 FINANCIAL PENALTY. THE THREE-DAY PERIOD EXPIRES ON THE THIRD DAY AT  
4 MIDNIGHT AFTER THE CONTRACT IS SIGNED BY ALL THE PARTIES.

5        3. THE FOLLOWING DISCLOSURE IN TWELVE-POINT FONT PLACED IN A  
6 READILY NOTICEABLE AND EASILY IDENTIFIABLE PLACE IN THE WRITTEN AGREEMENT  
7 [WITH A SEPARATE LINE THAT MUST BE INITIALED BY THE INDIVIDUAL RECEIVING  
8 SERVICES]:

9                THIS BUSINESS IS NOT ACCREDITED BY THE UNITED STATES  
10        DEPARTMENT OF VETERANS AFFAIRS AND CANNOT ASSIST WITH AN  
11        APPEAL TO THE BOARD OF VETERANS' APPEALS. THIS BUSINESS IS  
12        NOT SPONSORED BY, ENDORSED BY OR AFFILIATED WITH THE ARIZONA  
13        DEPARTMENT OF VETERANS' SERVICES OR THE UNITED STATES  
14        DEPARTMENT OF VETERANS AFFAIRS OR ANY OTHER FEDERALLY  
15        CHARTERED VETERANS' SERVICE ORGANIZATION. THE ARIZONA  
16        DEPARTMENT OF VETERANS' SERVICES, THE UNITED STATES DEPARTMENT  
17        OF VETERANS AFFAIRS, A LOCAL VETERANS' SERVICE ORGANIZATION OR  
18        A FEDERALLY CHARTERED VETERANS' SERVICE ORGANIZATION MAY BE  
19        ABLE TO PROVIDE YOU WITH THIS SERVICE FREE OF CHARGE.

20        E. A PERSON RECEIVING COMPENSATION PURSUANT TO SUBSECTION B OF THIS  
21 SECTION SHALL ALWAYS ACT IN THE INDIVIDUAL'S BEST INTEREST.

22        F. A PERSON RECEIVING COMPENSATION PURSUANT TO SUBSECTION B OF THIS  
23 SECTION MAY NOT DO ANY OF THE FOLLOWING:

24                1. GUARANTEE, TO AN INDIVIDUAL THE PERSON IS ADVISING, CONSULTING,  
25 ASSISTING, GUIDING, COACHING OR TRAINING REGARDING A VETERANS' BENEFITS  
26 MATTER, THAT THE INDIVIDUAL WILL RECEIVE A SPECIFIC VETERANS' BENEFIT OR A  
27 SPECIFIC LEVEL, PERCENTAGE OR AMOUNT OF VETERANS' BENEFITS.

28                2. USE PREDATORY ADVERTISING PRACTICES, INCLUDING GUARANTEEING A  
29 SUCCESSFUL OUTCOME OR AN INCREASE IN VETERANS' BENEFITS.

30                3. EMPLOY A MEDICAL PROVIDER TO CONDUCT A MEDICAL EXAMINATION.

31                4. USE AN INTERNATIONAL CALL CENTER OR DATA CENTER FOR PROCESSING A  
32 VETERAN'S PERSONAL INFORMATION.

33                5. GAIN DIRECT ACCESS TO ANY VETERAN'S PERSONAL MEDICAL, FINANCIAL  
34 OR GOVERNMENT BENEFITS INFORMATION.

35                6. CHARGE AN UP-FRONT FEE OR A NONREFUNDABLE FEE FOR ADVISING,  
36 CONSULTING, ASSISTING, GUIDING, COACHING OR TRAINING AN INDIVIDUAL  
37 REGARDING A VETERANS' BENEFITS MATTER. ANY COMPENSATION RECEIVED PURSUANT  
38 TO THIS SECTION SHALL BE CONTINGENT ON THE VETERAN'S BENEFITS BEING  
39 INCREASED. COMPENSATION IS CAPPED AT A ONETIME FEE THAT IS NOT MORE THAN  
40 FIVE TIMES THE MONTHLY AMOUNT OF THE VETERAN'S INCREASE IN BENEFITS.

41                7. CONTACT THE UNITED STATES DEPARTMENT OF VETERANS AFFAIRS  
42 DIRECTLY TO OBTAIN ANY VETERANS' BENEFITS INFORMATION OR PAYMENT  
43 INFORMATION REGARDING THE INDIVIDUAL WITHOUT THE PRIOR AUTHORIZATION OF  
44 THE INDIVIDUAL.

45        G. A VIOLATION OF THIS SECTION CONSTITUTES AN UNLAWFUL PRACTICE  
46 UNDER SECTION 44-1522. THE ATTORNEY GENERAL MAY INVESTIGATE AND TAKE ANY  
47 APPROPRIATE ACTION PURSUANT TO TITLE 44, CHAPTER 10, ARTICLE 7.

1 H. AN INDIVIDUAL WHO HAS CONTRACTED WITH A PERSON THAT OPERATES  
2 PURSUANT TO THIS SECTION HAS A CAUSE OF ACTION AGAINST THE PERSON IF THE  
3 PERSON FAILS TO COMPLY WITH THIS SECTION.

4 I. THIS SECTION DOES NOT APPLY TO, LIMIT OR EXPAND THE REQUIREMENTS  
5 IMPOSED ON AGENTS, ATTORNEYS OR OTHER REPRESENTATIVES WHO ARE ACCREDITED  
6 AND REGULATED BY THE UNITED STATES DEPARTMENT OF VETERANS AFFAIRS.

7 J. FOR THE PURPOSES OF THIS SECTION:

8 1. "COMPENSATION" MEANS ANY MONEY, ITEM OF VALUE OR ECONOMIC  
9 BENEFIT CONFERRED ON OR RECEIVED BY AN INDIVIDUAL IN RETURN FOR SERVICES  
10 PROVIDED BY A PERSON.

11 2. "HIGHER LEVEL REVIEW" MEANS THE DE NOVO REVIEW OF A CLAIM THAT  
12 IS REEXAMINED BY A HIGHER LEVEL REVIEWER.

13 3. "INITIAL CLAIM" HAS THE SAME MEANING PRESCRIBED IN 38 CODE OF  
14 FEDERAL REGULATIONS SECTION 3.1.

15 4. "PERSON" INCLUDES ANY CORPORATION, TRUST, PARTNERSHIP,  
16 INCORPORATED OR UNINCORPORATED ASSOCIATION OR OTHER LEGAL ENTITY.

17 5. "SUPPLEMENTAL CLAIM" HAS THE SAME MEANING PRESCRIBED IN 38 CODE  
18 OF FEDERAL REGULATIONS SECTION 3.1.

19 6. "VETERANS' BENEFITS MATTER" MEANS ANY BENEFIT, PROGRAM, SERVICE,  
20 COMMODITY, FUNCTION OR STATUS THE ENTITLEMENT TO WHICH IS DETERMINED BY  
21 THE DEPARTMENT OF VETERANS' SERVICES OR THE UNITED STATES DEPARTMENT OF  
22 VETERANS AFFAIRS PERTAINING TO VETERANS, THEIR DEPENDENTS, THEIR SURVIVORS  
23 AND ANY OTHER INDIVIDUAL ELIGIBLE FOR SUCH BENEFITS.

24 Enroll and engross to conform

25 Amend title to conform

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